

"Youngsters will not live in guilt simply because they love the wrong gender"

Writer Vikram Seth, one of the key signatories to a 2006 petition to the government on Section 377, on the Delhi High Court judgment. Excerpts.

Q. Has the judgment gone far enough?

A. It's an excellent judgment, well-structured and not obviously amenable to successful appeal or challenge. It has gone far enough; some provisions of Section 377 relating to

coercion or child protection had to be retained. But there are three caveats. First, the law applies only to Delhi. Second, the misconceptions of the society need to be changed and third, the groups affected should be granted, with deliberate speed, equal rights as others in society.

Q. Will it encourage people to be more open about their sexuality?

A. Yes, young people will not grow up with guilt,

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shame and misery simply because they love or are attracted to someone of the "wrong" gender.

Q. What is your message to parents who

cannot come to terms with their children's alternative sexuality?

A. What I would say to such parents is that your children deserve your love and understanding.

Q. Do you feel responsible for this change?

A. Perhaps I helped, but in a small way. Because I am a writer, I got the credit for the petition that we filed in 2006. The credit goes to those who fought to change the law and public opinion.

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ZAHID SHAFI ANSARI, 40 & RANJAN KOUL, 43 DELHI

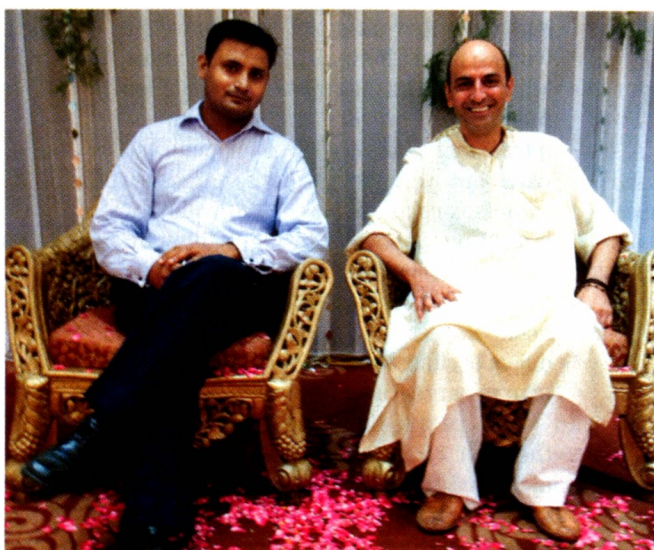
Zahid Shafi Ansari, a doctor, found Ranjan Koul, who works in the development sector, on a gay chatting website. "We knew we were looking for each other," says Ansari, whose father could never reconcile to his idea of sexuality. "He would tell me that I am sick and a coward, for needing the support of another man," he adds. Koul faced a different reaction. "When I told my parents I am gay, they just did not respond to it. They never talk about it," he says. But somehow Koul's mother has not given up, she still has a glimmer of hope that her son will marry a woman one day.

gay pride costumes, or the Pahal Foundation that runs India's first queer beauty parlour in Faridabad. In practice, Section 377 is hardly used against homosexuals. "In as many as 90 per cent of the cases, this Act is used in the matters of child abuse," explains Shivangi Rai, who was a part of the team of Lawyers Collective.

The judgment may not be a magic wand. For instance, 27-year-old Akram who works for a publisher and is in relationship with a 33-year-old lawyer Mahesh (names changed on

request), prefer anonymity to being branded. Because branding translates into discrimination and embarrassment. Gay activist Gautam Bhan sees the judgment not just as a victory for homosexuals but as a triumph of the Constitution of India. For Gopalan, it may just be the first small step, "but it's still a giant leap, in the right direction". And for that there is a long battle ahead. Baba Ramdev has moved the Supreme Court against the judgment. The Government will now have to shed its ambiguity and take a clear position on the issue. There is also a need for a public debate so that there exists a better understanding of homosexuality amongst the majority heterosexuals. So that, as writer Vikram Seth says, the malign influence of bigots, often backed by an inhumane interpretation of or unthinking emphasis on religion, cannot, in a secular state, affect the freedom and happiness of tens of millions of people.

with Abhijit Dasgupta in Kolkata, Maithili Chakravarthy and Pankti Mehta in Mumbai and Adhi Valliapan in Chennai



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